

26SMCV00627 26SMCV00627

County: los-angeles

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Case Number: 26SMCV00627 Hearing Date: July 28, 2026 Dept: M

CASE NAME: Scapa v. MDRCA

Properties LLC

CASE NO.: 26SMCV00627

MOTION: Motion

to Compel Further Responses

HEARING DATE: 7/28/2026

Legal

Standard

In

the absence of contrary court order, a civil litigant's right to discovery is broad. "[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (CCP § 2017.010; see *Davies v. Superior Court* (1984) 36 Cal.3d 291, 301.) Section 2017.020(a) vests the Court with authority to limit the scope of discovery if the burden, expense, or intrusiveness of the discovery sought "clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." CCP § 2019.030 directs the Court to consider the needs of the case, amount in controversy, and the importance of the issues at stake in the litigation, and to consider whether the discovery being sought is unreasonably cumulative or duplicative, or is obtainable by a more convenient or less expensive or less burdensome way, when deciding whether to

restrict the frequency or extent of use of an authorized discovery method.

CCP section 2030.220(a) requires

that “[e]ach answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” Pursuant to CCP section 2030.300, a party may move to compel further responses to a form interrogatory if the other party’s answer is “evasive or incomplete.” The responding party has the burden of justifying the objections to the form and special interrogatories. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.)

On receipt of a response to requests for admission

the propounding party may move for an order compelling a further response if the propounding party deems that an objection to an RFA is without merit or too general. (CCP § 2033.290(a)(2).)

Analysis

Plaintiff Jeffrey Scapa moves to compel Defendant MDRCA Properties LLC to provide further responses to Plaintiffs’ Form Interrogatories (“FROGs”) Set 1, nos. 15.1 and 17.1, and Requests for Admission (“RFAs”) Set 1.

Notice

of the motion must be provided within 45 days of service of the response, or any supplemental response, or on or before any specific later date to which the parties have agreed. (CCP § 2030.300(c); 2033.290(c).)

This deadline runs from the date the verified response is served, extended in accordance with CCP sections 1010.6 and 1013. This is a jurisdictional requirement. (*Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.)

Defendant responded via email

to the subject discovery on March 13, 2026, asserting only boilerplate objections. (Garson Decl., ¶¶ 2-3, Exs. A-B.) As such, Plaintiff had a total of 47 days from the date of service of Defendant’s responses to file this motion to compel further responses. Plaintiff did not bring the instant motion until June 22, 2026, over 100 days after the responses. The motions are therefore untimely.

Accordingly,
the motions are DENIED.

Furthermore,
the Court has an Informal Discovery Conference (IDC) order that requires an IDC
be held before a hearing date is set on a motion to compel further. It does not appear that the IDC order was
followed by the parties. The parties are
reminded of the IDC order and its requirements.